

LAW OF THE RUSSIAN FEDERATION NO. 3266-1 OF JULY 10, 1992¹

(with the Amendments and Additions of November 16, 1997, July 20, August 7, December 27, 2000, December 30, 2001, February 13, March 21, June 25, July 25, December 24, 2002, January 10, July 7, December 8, 23, 2003, March 5, June 30, August 22, December 29, 2004, May 9, July 18, 21, December 31, 2005, March 16, July 6, November 3, December 5, 28, 2006, January 6, February 5, 9, 2007)

Education is understood in this Law as a purposeful process of tuition and training in the interests of the person, society and the State, accompanied by certification of the achievement by the citizen (the individual undergoing instruction) of certain education levels (educational qualifications) defined by the State. The receiving of education by the citizen (the individual undergoing instruction) is understood as the achievement and certification of a certain educational qualification confirmed by an appropriate document. The right to receive an education is one of the basic and inalienable constitutional rights of citizens of the Russian Federation. The education in the Russian Federation is carried out in accordance with the legislation of the Russian Federation and the norms of the international law.

Chapter I. General Provisions

Article 1. The State Policy in the Sphere of Education

1. The Russian Federation proclaims education to be its priority sphere.
2. The organizational basis of the State policy of the Russian Federation in the sphere of education is the Federal purposive programme for the development of education.
3. The Federal Purposive Programme for the Development of Education shall be worked out and endorsed by the Government of the Russian Federation.
4. A report by the Government of the Russian Federation on the fulfilment of the Federal purposive programme for the development of education shall be submitted annually to both chambers of the Federation Council of the Russian Federation and published in an official publication.
5. The creation and functioning of the organizational structures of political parties, and of social and political, and religious movements and organizations (associations) is not permitted in the State and municipal education establishments and in education administration organs.

Article 2. The Principles of the State Policy in the Sphere of Education

The State policy in the sphere of education is based on the following principles:

¹ <http://en.russia.edu.ru/information/npb/fzakon/law/3266-1/index/>

- 1) the humanistic nature of education, priority of common human values, and human life and health, and free development of the personality, the cultivation of civic pride, diligence, respect for human rights, love for the environment, the Motherland, the family;
- 2) the unity of the Federal cultural and educational domain, protection and development of national cultures, regional cultural traditions and characteristics by the educational system under the conditions of multinational state;
- 3) the public character of education, the adaptability of educational system to the levels, and developmental characteristics and acquired knowledge of the students, pupils;
- 4) the secular character of education in the State and municipal educational establishments;
- 5) freedom of pluralism in education;
- 6) the democratic, State and public nature of education administration. The autonomy of educational establishments.

Article 3. The Legislation of the Russian Federation in the Sphere of Education

1. The legislation of the Russian Federation in the sphere of education consists of the Constitution of the Russian Federation, this Federal law, other laws being adopted in conformity with the latter, and other normative legal acts of the Russian Federation, as well as laws and other normative legal acts in the sphere of education of the subjects of the Russian Federation.

2. The Federal laws in the sphere of education including this Law:

- define the limits of the competence and responsibility of the Federal bodies of the State power, bodies of the State power of the subjects of the Russian Federation and local self-government bodies in the sphere of education;
- within the limits of the established Federal competence, control relations in the sphere of education, which are to be uniform for all subjects of the Russian Federation. In this part the Federal laws in the sphere of education are the laws of direct effect and are applicable throughout the territory of the Russian Federation;
- introduce general fundamental norms on matters pertaining to the competence of the subjects of the Russian Federation, according to which the latter shall exercise their own legal regulation in the sphere of education.

3. The subjects of the Russian Federation depending on their status and competence can adopt laws and other normative legal acts, provided that are not at variance with the Federal laws in the sphere of education. Laws and other normative legal acts of subjects of the Russian Federation in the sphere of education may not restrict the rights of natural and legal entities by comparison with the provisions of the legislation of the Russian Federation in the sphere of education.

4. Natural and legal entities violating the legislation of the Russian Federation in the sphere of education shall be liable in the manner laid down by the legislation of the Russian Federation.

Article 4. The Tasks of the Legislation of the Russian Federation in the Sphere of Education

The tasks of the legislation of the Russian Federation in the sphere of education are:

- 1) to define the competence of federal executive power bodies, executive power bodies of the subjects of the Russian Federation and local self-government bodies in the sphere of education;
- 2) to ensure and protect the constitutional right of citizens of the Russian Federation to education;
- 3) to establish legal guarantees for the free functioning and development of the educational system of the Russian Federation;
- 4) to define rights, obligations, powers, and responsibilities of natural and legal entities in the sphere of education and to exercise legal regulation of their relations in this sphere.

Article 5. The State Guarantees of the Rights of Citizens of the Russian Federation in the Sphere of Education

1. Citizens of the Russian Federation are guaranteed the possibility to receive education irrespective of their sex, race, nationality, language, social origin, place of residence, attitude toward religion, personal convictions, membership in public organizations (associations), age, health status, property status, official status, criminal record. ~~Limitation on the rights of citizens to education on the grounds of~~ Limitation on the rights of citizens to education on the grounds of sex, age, health status, criminal record may be established only by law.

2. The State ensures the right of citizens to education by establishing an educational system and the corresponding social and economic conditions for obtaining education.

3. The State guarantees that the citizens shall have access to the public and free pre-school, primary general, basic general, secondary (complete) general education and primary vocational training, and, on a competitive basis, to free secondary vocational, higher vocational and aftergraduate vocational education and training in the State and municipal educational establishments within the State educational standards should the citizen receive education at this level for the first time.

~~4. Abolished from January 1, 2005.~~

5. In order to exercise the right to education of citizens in need of social assistance the State shall bear all or part of the cost of their maintenance during period of their education. The categories of citizens who this assistance will be rendered to, the procedure for, and the scope of, rendering it shall be established by federal laws for federal state educational facilities, by laws of the subjects of the Russian Federation for educational facilities within the scope of jurisdiction of the subjects of the Russian Federation and for municipal educational facilities.

6. The State shall create conditions for the education of citizens with developmental abnormalities, correction of developmental abnormalities and social adaptation based on special pedagogical methods.

7. The State provides support to citizens who have exhibited outstanding capabilities for their education including the awarding of special State grants such as grants for studies abroad. The criteria and the procedures for the awarding of such grants are laid down by the Government of the Russian Federation.

Article 6. Language (Languages) of Tuition

1. The general aspects of language policy in the educational sphere are governed by the Law of the RSFSR On the Languages of the Peoples of the RSFSR.

2. Citizens of the Russian Federation have the right to receive their basic general education in their mother tongue, and also to choose the language of tuition within the range of possibilities afforded by

the educational system.

the creation of the necessary number of appropriate educational establishments, classes, groups and conditions for their functioning.

The right of c

3. The language (languages) in which teaching and education are effected in an educational establishment shall be defined by the founder (founders) of the educational establishment and (or) by the Charter of the educational establishment.

4. Pursuant to international agreements of the Russian Federation the State shall assist representatives of the peoples of the Russian Federation residing outside its territory in obtaining basic general education in their mother tongue.

5. The State government educational standards shall govern the matters of study of the Russian language as the official language of the Russian Federation in all State-accredited educational establishments except for pre-school ones.

6. Matters pertaining to the study of official languages of the constituent republics of the Russian Federation shall be governed by the legislation of these republics.

7. The State shall provide assistance in the training of specialists to carry out the educational process in mother languages of the peoples of the Russian Federation that have no statehood of their own.

Article 7. The State Educational Standards

1. In the Russian Federation state education standards shall be established as incorporating a federal component and a regional (ethnic-regional) component and also an educational institution component. The Russian Federation through the Federal bodies of the State power acting within their competence defines the Federal components of the State educational standards, which establish a mandatory minimum content of the basic education syllabi, the maximum volume of the tuition load of students, requirements for the educational level of final-year students. may be established in respect of specific additional educational programs in a manner established by a federal law.

State education

2. Special State educational standard can be laid down for the implementation of the education syllabi for pupils with developmental abnormalities.

3. The procedure for the drafting, approval and introduction of the State educational standards shall be laid down by the Government of the Russian Federation, except for cases for which a legal provision is made.

4. The basic provisions of the state educational standards of primary, general, basic general and secondary (complete) general education, a procedure for the elaboration and endorsement thereof shall be established by a federal law.

5. State educational standards shall be endorsed at least once in ten years.

6. The State educational standards shall be the main basis for obtaining an objective assessment of the educational level and qualifications of course leavers irrespective of forms of their education.

Chapter II. The Educational System

Article 8. The Concept of the Educational System

The educational system in the Russian Federation is a combination of interacting:

- successive education syllabi and the State educational standards of various levels and pursuing various goals;
- a network of implementing educational establishments of all organizational and legal forms, types and kinds;
- a system of education administration, and establishments and organizations under their jurisdiction;
- associations of legal entities, public and state-public associations exercising activities in the area of education.

Article 9. The Educational Curriculum

1. An educational curriculum defines the content of education at a specific level and its goal. The curriculum taught in the Russian Federation are subdivided into:

(basic and supplementary)

1) (general education curriculum)
2) (vocational training curriculum)

1) general education

2. The general education curriculum are geared toward the solution of the problems of forming the general cultural level of an individual, fitting of an individual for life in society, creation of the basis for an informed choice of and acquisition of vocational training curriculum.

3. The following curriculum belong to the category of the general education curriculum:

- 1) pre-school education;
- 2) primary general education;
- 3) basic general education;
- 4) secondary (complete) general education;

4. The vocational training curriculum are geared toward the solution of the problems of continuous improvement of professional and general education levels, and the training of properly qualified specialists.

5. The following curriculum belong to the category of the vocational training:

- 1) primary vocational training;
- 2) secondary vocational training;
- 3) higher vocational training;
- 4) post-graduate vocational training.

6. The mandatory minimum content of each basic general education syllabus or of the basic vocational training syllabus (for a specific occupation or profession) is laid down by a corresponding State educational standard.

7. The standard course lengths for acquiring the basic education curriculum in the State and municipal educational establishments are stipulated in this Law and (or) in Sample Regulations on educational establishments of the corresponding types and kinds, or in a corresponding State educational

standard.

Article 10. Forms for Acquiring Education

1. Having regard to the needs and capabilities of an individual the education curriculum shall be acquired through the following forms: in an educational establishment - on a full time basis, by part-time study, by correspondence; through education within the family, through self-education and through external studies.

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2. The single State educational standard must be met by all forms of acquiring education within the framework of a specific basic general education or basic vocational training syllabus.

3. The lists of professions and occupations for which qualifications may not be obtained through studies on a part-time basis, by correspondence or through external studies are approved by the Government of the Russian Federation within the competence of the Russian Federation.

Article 11. The Founder of an Educational Establishment

1. The following may be a founder of an educational establishment (hereinafter referred to as the founder):

- 1) bodies of the State power, organs of local self-government;
- 2) domestic and foreign organizations of all types of ownership, their associations (unions and alliances);
- 3) domestic and foreign public and private foundations;
- 4) public and religious organizations (associations) registered in the territory of the Russian Federation;
- 5) citizens of the Russian Federation and foreign citizens. The combined establishment of non-governmental educational institutions shall be allowed. The rights of the founder are transferred to the corresponding successors should a reorganization of bodies of the State power, organs of education administration and (or) organs of the local self-government take place.

2. Only the Government of the Russian Federation may be the founder of educational establishments of all types and kinds which carry out military vocational educational curriculum.

Only Federal

bodies of executive power and (or) organs of executive power of the subjects of the Russian Federation may be the founders of a special educational-corrective establishment of closed type for children and adolescents with deviational (socially dangerous) behaviour.

3. Relations between the founder and the educational establishment are governed by a contract they conclude in accordance with the legislation of the Russian Federation.

Article 11-1. Governmental and Non-Governmental Educational Organisations

1. Governmental and non-governmental educational organisations may be established in the

organisational-and-legal forms provided for by the civil legislation of the Russian Federation for non-profit organisations.

2. The activities of governmental and non-governmental educational organisations in the part thereof that is not regulated by this Law shall be regulated by the laws of the Russian Federation.

Article 12. Educational Establishments

1. An educational establishment is an establishment that provides education, i.e. teaches one or more education curriculum and (or) provides maintenance and upbringing of students and pupils.

2. An educational establishment is a legal entity.

3. Educational institutions can be governmental ones (federal ones or those within the scope of jurisdiction of a subject of the Russian Federation), municipal ones and non-governmental ones (private ones, institutions of public and religious organisations (associations). A federal governmental educational institution shall mean an educational institution in federal ownership that is financed at the expense of the federal budget. The operation of the laws of the Russian Federation in the area of education shall extend to all educational institutions in the territory of the Russian Federation, regardless of their organisational-and-legal forms and subordination.

4. Establishments of the following types are regarded as educational:

- 1) pre-school establishments;
- 2) general educational establishments (primary general, basic general, and secondary (complete) general education);
- 3) primary vocational, secondary vocational, higher vocational training, and after-graduate vocational training;
- 4) educational establishments for further education of adults;
- 5) special (remedial) establishments for students, pupils with developmental abnormalities;
- 6) *Abolished from January 1, 2005;*
- 7) establishments for orphaned children, and children left without care of their parents (or persons acting in loco parentis);
- 8) establishments for further education of children;
- 9) other establishments providing education.

5. The activity of the State and municipal educational establishments shall be governed by Sample Regulations for educational establishments of the corresponding types and kinds approved by the Government of the Russian Federation and by Charters of these educational establishments based on the former. The Sample Regulations for educational establishments may be used as examples for non-government educational establishments.

6. The official status of an educational establishment (the type, kind, and category of an educational

establishment being determined in accordance with the level and educational goal of the educational curriculum taught) shall be laid down with its State accreditation.

7. Branches, departments, structural subdivisions of an educational establishment may completely or partially by their proxy exercise the legal rights of a legal entity.

8. Educational institutions shall have the right to form educational unions (associations and alliances) which may have as their members institutions, enterprises, and public organizations. The said educational associations shall be created with the purpose to develop and improve education, they shall function in accordance with their Charters. The procedure for the registration and functioning of the said educational associations shall be governed by law. 9. Rights and responsibilities of the establishments of further education provided for by the legislation of the Russian Federation, shall apply also to the public organizations (associations) whose Charters stipulate educational activities as their main goal, only in so far as it concerns implementation of additional educational curriculum.

Article 13. The Charter of an Educational Establishment

1. The Charter of an educational establishment must specify:

- 1) the name, location (legal and actual address), and status of the educational establishment;
- 2) the founder (of the educational establishment);
- 3) the organizational and legal form of the educational establishment;
- 4) the goals of the teaching process, the types and kinds of the education curriculum taught;
- 5) the main organizational features of the teaching process, including:
 - a) the language (languages) in which instruction and upbringing are carried out;
 - b) the rules for acceptance of students and pupils;
 - c) the duration of courses in each stage of tuition;
 - d) the procedure and the grounds for expulsion of students and pupils;
 - e) grading system of mid-course assessment, its forms and procedure;
 - f) the study schedule of students pupils;
 - g) availability of educational services provided for a fee and the procedure of their provision (on a contractual basis);
 - h) the procedure regulating and structuring the relations between the educational establishment and the students, pupils and (or) their parents (or persons acting in loco parentis);
- 6) The structure of the financial and economic activity of the educational establishment, including such matters as:
 - a) the use of the property assigned to an educational establishment;
 - b) the provision of funding and material and technical resources to ensure functioning of the educational establishment;
 - c) *Abolished from January 1, 2005;*
 - d) exercising business activities and any other profit-making activities;
 - e) the prohibition to make transactions whose possible outcome is the alienation or charging of the property assigned to educational establishments or the property acquired at the expense of the funds allocated to this establishment by the owner of the educational establishment, except in the

cases, when the performance of such deals is admissible in conformity with the federal laws;

f) the procedure for disposal of the property acquired by an establishment at the expense of the income derived from business and other profit-making activities;

g) opening accounts with the federal treasury bodies (except for non-governmental educational establishments and autonomous institutions);

7) The manner in which the educational establishment is managed, including:

a) the competence of the founder;

b) the structure of the administrative organs of the educational establishment, and the procedure for setting them up, their competence and the organization of their functioning;

c) the staff recruitment procedures and labour remuneration conditions;

d) the procedure for amending the Charter of the educational establishment;

e) the procedure for reorganization and liquidation of the educational establishment;

8) the rights and responsibilities of participants in the educational process;

9) A list of local acts (orders, instructions and other acts) governing the activity of the educational establishment.

2. The Charter of a civilian educational establishment in its part not covered by the legislation of the Russian Federation shall be worked out and adopted by the establishment and approved by its founder. The procedure for approving the Charter of a federal governmental educational establishment shall be set up by the Government of the Russian Federation, the Charter of a governmental educational establishment that is within the scope of jurisdiction of a subject of the Russian Federation shall be approved by the executive body of the subject of the Russian Federation and the Charter of a municipal educational establishment shall be approved by the local self-government body.

3. Should the abovelisted matters of the activity of an educational establishment need to be regulated by some other local acts the latter shall be registered as addenda to the Charter of the educational establishment.

4. The local acts of an educational establishment may not contradict its Charter.

Article 14. General Requirements for the Content of Education

1. The content of education is a factor of the economic and social progress of society and it should be geared toward:

- ensuring the self-determination of the personality , and creating the conditions for its self-realization;
- development of civil society;
- the strengthening and improvement of the rule of law in the State.

2. The content of education should ensure:

- internationally adequate level of general and professional culture in society;
- acquisition by the students of an adequate picture of the world at the modern level of knowledge

and syllabus being taught;

- integration of an individual into the national and international culture;
- molding an individual and a citizen integrated into the contemporary society and determined to improve it;
- reproduction and improvement of the qualified workforce potential of society.

3. Vocational training at all levels must ensure that the students acquire a trade or profession and a corresponding qualification.

4. The content of education must contribute to mutual understanding and cooperation between individuals, peoples irrespective of their race, nationality, ethnic group, religious affiliation and social position; it must respect the existing diversity views, and help the students exercise their right to the free choice of opinions and convictions.

5. The content of education in a specific educational establishment is determined by the education syllabus (curriculum) which is independently worked out, approved and taught by the educational establishment. The State education administration bodies shall provide for drafting sample educational curriculum based on the State educational standards.

6. An educational establishment may, in accordance with the purpose and aim laid down in its Charter, teach additional curriculum and offer additional educational services (on a contractual basis) outside the limits of the educational curriculum defining its status.

7. Pupils shall receive elementary knowledge of the defence of the State, of the military duty of citizens and acquire habits in the sphere of civil defence, and also the male citizens who have not served in military units shall be trained in the principles of military service in the educational establishments of the secondary (complete) general education, in the educational establishments of the primary professional and secondary professional education in accordance with the state educational standards in the order provided for by the laws and other normative legal acts of the Russian Federation, the laws and other normative legal acts of the subjects of the Russian Federation.

8. The educational establishment shall make use of cultural establishments in the process of teaching of education curriculum.

Article 15. General Requirements for the Organization of the Teaching Process

1. The organization of the teaching process in an educational establishment shall be regulated by the curriculum (allocation of the content of the education syllabus into courses, subjects and academic years), the annual course schedule and by the classes timetable independently drafted and approved by the educational establishment. The State education administration bodies shall provide for drafting of the basic education plans and model courses and teaching subjects.

2. The bodies of the State power, the bodies of education administration and the organs of the local

self-government shall not have the right to amend the curriculum, and teaching scheme of a civil educational establishment after the latter have been approved except for cases provided for by the legislation of the Russian Federation.

3. The educational establishment shall be independent in its choice of the system of assessment and in the form, manner, and frequency of mid-course assessment of its students, pupil.

4. The assimilation of the educational programs of the basic general, secondary (complete) general and of all types of professional education shall be completed with the obligatory final attestation of graduating trainees. In educational establishments accredited by the State the assimilation of the said educational programmes shall be completed with the obligatory state (final) attestation of students.

The state (final)

secondary (complete) general education shall be held in the form of the uniform state examination. Other forms of carrying out the state (final) attestation may be established by the federal executive power body exercising the functions of formulation of the state policy and of normative-and-legal regulation in the educational sphere for trainees who have assimilated educational programmes of secondary (full) general education at special educational establishments of closed type for children and teenagers with deviant (socially dangerous) behavior, as well as at institutions enforcing punishments in the form of deprivation of liberty or for trainees with deviations in their development who have assimilated educational programmes of secondary (complete) general education.

4.1. The uniform state examination constitutes a form of unbiased assessment of the quality of training of persons who have assimilated educational programmes of secondary (complete) general education by using assignments of standardized form (control assessment materials) whose fulfillment makes it possible to assess the level of assimilation by them of the federal component of the state educational standard of the secondary (complete) general education. The uniform state examination shall be held by the federal executive power body exercising the functions of control and supervision in the field of education jointly with the executive power bodies of constituent entities of the Russian Federation having authority in the educational sphere.

4.2. The results of the uniform state examination shall be recognized by the educational establishments, where educational programmes of secondary (complete) general education are implemented, as the results of the state (final) attestation, and they shall be recognized by educational establishments of secondary professional education and by educational establishments of higher professional education as the results of entrance examinations for the appropriate general education subjects.

4.3. Persons who have passed the uniform state examination (hereinafter referred to as participants of the uniform state examination) shall be issued the certificates proving the results of the uniform state examination. The validity term of such certificate shall expire on December 31 of the year following the year of its obtainment.

4.4. Persons who assimilated educational programmes of secondary (complete) general education in the previous years, including persons who have Certificates proving the results of the uniform state examination whose validity term has not yet expired, shall be granted the right to take the uniform state examination in subsequent years within the period of carrying out the state (final) attestation of trainees.

4.5. Persons who have been drafted and dismissed from military service shall be granted the right to use the results of the uniform state examination passed by them in the year preceding their drafting within a year after their dismissal from military service, when entering the state and municipal educational establishments of secondary professional education and the state and municipal educational establishments of higher professional education.

4.6. A Procedure for conducting in any form the state (final) attestation, including a Procedure for filing and considering appeals, the Form of, and Procedure for issuance of the certificate proving the results of the uniform state examination, shall be determined by the federal executive power body exercising the functions of formulation of the state policy and of normative-and-legal regulation in the educational sphere.

5. The scientific-and-methodological support to final assessments and control over the quality of training graduates, who are issued documents of the state standard, proving the appropriate level of education and (or) qualification, upon completion of each level and each stage of education, shall be rendered by the federal executive power body exercising the functions of control and supervision in the educational sphere and by the executive power bodies of constituent entities of the Russian Federation exercising the authority in the educational sphere in compliance with the state educational standards.

5.1. To arrange the uniform state examination and to register the results thereof, federal databases and databases of the constituent entities of the Russian Federation where data on the participants of the uniform state examination and on the results of the uniform state examination shall be set. The said databases shall be formed and kept, their interaction shall be ensured and access to the information contained therein shall be provided in the procedure determined by the Government of the Russian Federation. A participant of the uniform state examination shall be entitled to have a free access to the information about himself contained in the said databases.

6. Discipline in the educational establishment is maintained on the basis of respect for the human dignity of students, pupils and pedagogues. The use of methods of physical and mental coercion against students and pupils may not be permitted.

7. The parents (persons acting in loco parentis) of minors must be provided an opportunity to familiarize with the realization and content of the teaching process, and with the grades of the students, pupils.

8. The educational institution shall keep individual record of the results of students mastering curricula

and also shall archive information on these results as hard-copy and/or soft-copy in the manner approved by the federal (central) governmental body in charge of education.

Article 16. General Requirements for Admission to the Educational Establishments

1. The general requirements for the admission of citizens to educational establishments shall be regulated by this Law and other federal laws, and for the state and municipal educational establishments by model regulations on educational establishments of the appropriate types and kinds as well. A procedure for admission of citizens to the state and municipal institutions of primary professional education, the state and municipal educational establishments of secondary professional education and the state and municipal educational establishments of higher professional education, as well as the specifics of holding entrance examinations for citizens with deviations in their development, shall be established in the procedure determined by the Government of the Russian Federation.

1.1. The rules for admission of citizens to an educational establishment shall be determined by the founder of the educational establishment in compliance with the legislation of the Russian Federation and shall be fixed in the statutes of the educational establishment. The rules for admission to the state and municipal educational establishments at the stage of primary general, basic general, secondary (complete) and primary professional education have to ensure admission of all citizens residing in a certain territory and entitled to receive education of the appropriate level.

2. Upon admission of a citizen to the educational establishment it must familiarize him (her) and (or) his (her) parents (or persons acting in loco parentis) with the Charter of the educational establishment, the license for the right to engage in an educational activity, with the certificate on the state accreditation of the educational establishment, and other documents regulating organization of the teaching process.

3. The enrollment of citizens to the state and municipal educational establishments for getting secondary professional, higher professional and postgraduate professional education shall be performed on the competitive basis at the citizens' applications. The terms of the competition shall guarantee observation of the rights of the citizens to get education and shall provide for enrollment of those citizens, who are the most capable and best prepared for assimilating an educational programme of the corresponding level and (or) stage.

A competition for

educational establishments of secondary professional education and the state and municipal educational establishments of higher professional education shall be held on the basis of the results of the uniform state examination in respect of the general education subjects corresponding to the field of training (specialty) for which enrollment is effected.

When enrolling t

educational establishments of secondary professional education and the state and municipal educational establishments of higher professional education for training in the areas (specialties) which require that entering persons should have certain creative abilities, physical and (or) psychological capacities, the said educational establishments shall be entitled to arrange additional

entrance examinations of creative and (or) professional nature for which the uniform state examination has not been held and whose results shall be taken into account along with the results of the uniform state examination when holding a competition. A List of training areas (specialties) for which additional examinations of the creative and (or) professional nature may be held shall be endorsed in the procedure determined by the Government of the Russian Federation.

The state education

establishments of higher professional education may be granted the right to hold additional entrance examinations of their profile nature, when enrolling to such educational establishments, for other areas of training (specialties). A list of the said educational establishments where additional entrance examinations of their profile nature and of training directions (specialties) may be held, when enrolling thereto, shall be formed on the basis of proposals of the state educational establishments of higher professional training. A procedure and criteria for selection, as well as a List of the said educational establishments and training directions (specialties) for which additional entrance examination of the profile nature may be held, shall be endorsed by the Government of the Russian Federation.

A list of additional

establishments of secondary professional education and the state educational establishments of higher professional training, where training is connected with enlistment for the civil service and admittance to the data constituting a state secret, shall be established by the federal executive power body entrusted with the functions of the founder.

A list of add

for holding them at the state and municipal educational establishments of secondary professional education and at the state and municipal educational establishments of higher professional education shall be declared by such higher educational establishments at latest on February 1 of the current year.

The follow ing

of entrance examinations to the state and municipal educational establishments of secondary professional education and the state and municipal educational establishments of higher professional education:

as children who are orphans and ch

23 years old from among children who are orphans and children without parental custody; disabled

children, invalids pertaining to Groups I and II for whom training at the appropriate educational establishments is not contraindicative according to an opinion of the federal institution engaged in carrying out medico-social expert examinations;

persons under 20 y

parent being an invalid of Group I, where average per capita income of their family is lower than the subsistence minimum established in the appropriate constituent entity of the Russian

Federation;

persons dismissed

implementing military professional educational programmes on the basis of recommendations of commanders of military units, as well as participants of combat operations.

The priority right

enter the state and municipal educational establishments of secondary professional education and the state and municipal educational establishments of higher professional education shall be enjoyed by the citizens dismissed from military service, children of military servicemen who have perished while discharging their military duties or deceased as a result of a military trauma or of contracting a disease while participating in antiterrorist operations and (or) other activities against terrorism. A procedure for determining persons who have participated in antiterrorist operations and (or) other activities against terrorism shall be established in compliance with federal laws.

W inner and

final stage of an all-Russia competition of schoolchildren, members of picked teams of the Russian Federation who have participated in international competitions for general education subjects and formed in the procedure determined by the Government of the Russian Federation shall be enrolled without taking entrance examinations to the state and municipal educational establishments of secondary professional education and the state and municipal educational establishments of higher professional education for training in the educational areas (specialties) which correspond to the profile of the all-Russia competition of schoolchildren or the international competition.

Winners of

awardees of competitions of schoolchildren held in the procedure established by the federal executive power body exercising the functions of formulation of the state policy and of normative-and-legal regulation in the educational sphere shall be enrolled to the state and municipal educational establishments of secondary professional education and to the state and municipal educational establishments of higher professional education for training in the areas of education (specialties) corresponding to the profile of a competition of schoolchildren in the procedure established by the said federal executive power body. Winners of the Olympic Games, Paraolympic Games and Surdoolympic Games shall be enrolled without entrance examinations to the state and municipal educational establishments of secondary professional education and the state and municipal educational establishments of higher professional education for training in the educational areas (specialties) in the field of physical training and sports.

4. The servicemen, going through the military service under a contract (with the exception of officers), whose uninterrupted period of military service under a contract comprises at least three years, shall enjoy the right to be enrolled without competition, under the condition that they successfully pass the entrance tests in conformity with the order defined by the Government of the Russian Federation, to the state and municipal educational establishments of the secondary and the higher professional education, as well as to the preparatory departments of the federal state educational establishments of a higher professional education for being educated at the expense of funds from the federal budget by assimilating the educational programmes in accordance with the full day-external (evening) or with the external form of education.

5. Citizens, who have passed the military service in the Armed Forces of the Russian Federation or in the other troops, military formations and bodies while occupying military posts to be filled by soldiers, sailors, sergeants and sergeant -majors, and who have been dismissed from the military service on the grounds stipulated in Subitems (b) - (d) of Item 1, in Subitem a) of Item 2 and in Item 3 of Article 51 of Federal Law No. 53-FZ of March 28, 1998 on the Military Duty and the Military Service, shall be enrolled to the state and municipal educational establishments of the higher professional education for being educated according to the educational programmes for a higher professional education without competition under the condition that they successfully pass the entrance tests. If the study at the preparatory departments of the federal state educational establishments of a higher professional education, defined by the Government of the Russian Federation in the order established in the legislation of the Russian Federation on the placement of orders, for the first time since the end of the military service under a contract, their education shall be carried out at the expense of funds

from the federal budget.

Article 17. The Teaching of the General Education Curriculum

1. The general education curriculum are taught in pre-school educational establishments, educational establishments providing primary general, basic general, secondary (complete) general education including special (remedial) educational establishments for students, pupils with developmental abnormalities, in educational establishments for orphaned children and children left without maintenance of their parents (or persons acting in loco parentis). General education programmes may be implemented by educational establishments of primary vocational education, secondary professional education and higher professional education having the appropriate licences.
2. The education curriculum for special (remedial) educational establishments for students, pupils with developmental abnormalities shall be worked out on the basis of the main general education curriculum taking into account the physical and mental developmental characteristics and the capabilities of the students, pupils.
3. The education curriculum for pre-school, primary general, basic general and secondary (complete) general education are continuous, i.e. each successive syllabus is based on the previous one.
4. Students and pupils at the primary general and basic general educational levels who have not acquired the syllabus of the school year and are behind in one or two subjects of the curriculum, shall be retained to repeat the course, shall be transferred to remedial teaching classes with fewer pupils per teaching staff of the educational establishment or shall continue their education in the form of education in the family. Students and pupils at these educational levels who are assessed for a school year to be behind in one subject shall be transferred conditionally to the next class. In any case the transfer of the student or pupil to the next class requires a decision of the educational establishment management body.
5. Students, pupils who have not mastered the education syllabus of the preceding level are not allowed to proceed to the next level of general education.

Article 18. The Pre-school Education

1. The parents are the first pedagogues. In infancy of their child they must lay the foundation for his (her) physical, moral and intellectual development.
- ~~2. Abolished from January 1, 2005.~~
3. A network of pre-school educational establishments is in operation to support families in the upbringing of children of pre-school age, to safeguard and improve their physical and mental health, develop their individual capabilities and if need be, remedy developmental defects.
4. The relations between the pre-school educational establishments and parents (persons acting in loco

parentis) shall be governed by a contract they sign, which may not infringe upon the legal rights of its parties.

5. The local self-government organs organize and coordinate support in the form of methods, diagnosis and advice to the families bringing up children of pre-school age at home.

Article 19. The Primary General, Basic General and Secondary (Complete) General Education

1. The general education shall comprise three stages corresponding to the levels of the educational curriculum: primary general, basic general, and secondary (complete) general education.

2. Child education in the educational institutions applying primary general education curricula shall be begun as they attain the age of six years and six months if they are physically fit but not later than the age of eight. On the application of the parents (legal representatives) the founder of the educational institution shall be entitled to admit children in the education institution to be educated there at an earlier age. The rated terms for mastering the basic educational curricula of primary general, basic general and secondary (complete) general education shall be set by a federal law.

3. The basic general education and the State (final) assessment shall be compulsory.

4. As regards an individual student, pupil, the requirement of compulsory general education shall remain in force until the student, pupil has reached the age of fifteen years, unless the student, pupil has acquired the said education by an earlier age.

5. The acquisition of basic general education through full-time studies in a general educational establishment shall be restricted to persons of up to eighteen years of age. The maximum age for basic general education may be extended for student, pupil categories listed in Items 10-12 of Article 50 of this Law.

6. On the consent of the parents (legal representatives), a commission for minors and protection of minors' rights and a local body in charge of education a student who has reached the age of 15 may leave a general education institution before he/she receives a basic general education. The commission for minors and protection of minors' rights jointly with the parents (legal representatives) of a minor who has left a general education institution before he/she received a basic general education, and the local self-government body shall within one month take measures for arranging for the employment of the minor and/or for him/her to continue studying in a basic general education curriculum in another form of education.

7. For repeated gross violations of the charter of an educational institution a student who has reached the age of 15 may be expelled from the educational institution by a decision of the administrative body of the educational institution.

The student shall be expelled from the educational institution if tutorship measures have proved to be futile and further attendance of the student at the educational institution has a negative effect on the

other students, infringes their rights and the rights of employees of the educational institution, and also on the normal operation of the educational institution.

A decision on the expulsion of a student who has not received a basic general education shall be taken with account taken of the opinion of his/her parents (legal representatives) and with the consent of the commission for minors and protection of minors' rights. A decision on the expulsion of orphan children and of children left without parental care shall be taken with the consent of the commission for minors and protection of minors' rights and of the body of tutorship and guardianship.

An educational institution shall immediately notify the student's parents (legal representatives) and the local self-government body of the expulsion of a student from the educational institution.

The commission for minors and protection of minors' rights jointly with the local self-government body and the parents (legal representatives) of a minor who is expelled from an educational institution shall within one month take measures for arranging for the employment of the minor and/or for the minor to continue his/her education in another educational institution.

8. The general educational establishments may provide vocational training of students as a kind of additional (including provision of the service for payment) educational services on contractual basis and in conjunction with enterprises, institutions, organizations, provided their are duly licensed (permitted) to carry out the said kind of activity. The primary vocational training is carried out only with the consent of the students, pupils and their parents (persons acting in loco parentis).

Article 20. Provision of the Vocational Training Curriculum

1. The vocational training curriculum, including curriculum for students, pupils with developmental abnormalities and handicapped individuals, are provided in vocational training educational establishments, including special (remedial) establishments. The State accredited vocational training establishments shall provide the said training curriculum of the corresponding level with the aim of training skilled labour force (workers and office employees) and specialists of requisite standard pursuant to lists of occupational specialities approved in the procedure established by the Government of the Russian Federation, and level of education as established by this Law.

2. The State educational standard of the secondary (complete) general education shall be provided within the framework of the education curriculum and the basic vocational or secondary vocational training with due regard to the particular vocational training being provided.

3. The fact that a citizen possesses a vocational qualification may not be a reason to refuse to admit him to a vocational training establishment.

Article 21. Vocational Training

1. The purpose of vocational training shall be accelerated acquisition by the students of skills necessary to perform a particular job task or a group of tasks. Vocational training is not accompanied

by improvement of educational level of the student.

2. When necessary, the State will create conditions under which persons who had not received the general basic education may obtain vocational training.

3. Vocational training may be obtained in educational establishments, as well as in educational subdivisions of the organizations having the appropriate licences and by way of individual training by specialists having the appropriate qualifications.

Article 22. Primary Vocational Training

1. The purpose of the primary vocational training shall be to train skilled workers for all main fields of socially useful activity relying on the basic general and secondary (complete) general education.

2. The primary vocational training may be obtained in educational establishments of primary vocational education, as well as in educational establishments of secondary professional and higher professional education having the appropriate licences.

Article 23. Secondary Vocational Training

1. The purpose of the secondary vocational training shall be to train middle-level specialists, and to meet the need of individuals to deepen and expand their education on the basis of the secondary (complete) education or basic vocational training.

2. The citizens with qualifications in the primary vocational training for an appropriate occupation shall receive the secondary vocational training in short intensive courses.

3. The secondary vocational training may be obtained in the secondary vocational training establishments (the secondary specialized training establishments) or in the first level of higher vocational training establishments.

4. An educational establishment providing secondary vocational training may teach primary vocational training curriculum if licensed to do so.

Article 24. Higher Vocational Training

1. The purpose of higher vocational training shall be the training and retraining of specialists at the highest level and the satisfaction of individual needs to deepen and expand education on the basis of the secondary (complete) general and the secondary vocational training.

2. The higher vocational training may be obtained in higher vocational training establishments (higher education establishments).

3. Individuals who have the primary vocational training in an appropriate occupation may obtain the higher vocational training in short intensive courses.

4. Individuals who have the secondary vocational training in an appropriate occupation may obtain the higher vocational training in short intensive courses.

Article 25. Postgraduate Vocational Training

1. The postgraduate vocational training gives citizens the possibility to improve their level of education or their scientific or teaching qualification on the basis of higher vocational training.
2. Postgraduate professional education may be obtained through postgraduate studies, internship, postgraduate studies in a military educational institution, doctoral studies arranged in higher professional educational institutions and scientific organisations holding appropriate licences.

Article 26. Further Education

1. Further educational curriculum and further educational services are provided for the purpose of comprehensive satisfaction of the educational needs of citizens, society and the State.

The main task of further education at each level of vocational training is continuously to increase the occupational qualifications of skilled workers and office workers due to the continual improvement of the educational standards.

2. Educational curriculum of varied trends belong to the further education curriculum which are taught:

- in general educational and vocational training establishments outside their main teaching curriculum that determine their status;
- in further education establishments (advanced training establishments, courses, vocational guidance centres, schools of music and art, commercial art schools, creative activity centres for children, young technicians' stations, young naturalists' stations, and other establishments which have proper licenses);
- and through individual teaching activity.
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Article 27. Education Documents

1. The educational establishment shall issue the individuals who have passed the final assessment documentary evidence of the education received and (or) the qualification obtained in accordance with the establishment's license. The form of the document is determined by the establishment itself. The document is authenticated by the seal of the educational establishment.
2. The State accredited educational establishments (except pre-school establishments) that provide general educational curriculum and vocational training curriculum shall issue individuals who have been assessed a State (final) education document confirming their educational level and (or) qualification, attested with the seal of a specific educational institution.
3. Upon completion of postgraduate vocational training and successful defence of a qualification paper (a dissertation or a set of works) a citizen shall be awarded a scientific degree and issued an appropriate certificate.

4. The possession of a document of the State model as proof of a certain level of education is an essential condition for the continuation of study at the next educational level in a State or municipal educational establishment.

Qualifications state

secondary vocational, higher vocational training and scientific degrees recorded in documents issued upon completion of postgraduate vocational training shall give their bearers the right to engage in a certain professional activity, and occupy positions for which mandatory qualificational requirements are laid down for the corresponding educational qualifications.

5. The following educational levels (educational qualifications) shall be established in the Russian Federation:

- 1) basic general education
- 2) secondary (complete) general education
- 3) primary vocational training
- 4) secondary vocational training
- 5) higher vocational training
- 6) postgraduate vocational training

6. Individuals who have not completed a given level of education, have not passed the State (final) attestation or have received unsatisfactory marks in the course of the State (final) attestation shall be issued a Certificate of the established form proving training at an educational establishment.

Persons who have not passed the State (final) attestation or who have received unsatisfactory marks in the course of the State (final) attestation shall be entitled to a repeated State (final) attestation at earliest in a year.

7. The provision of educational establishments accredited by the State with forms of the state-type documents proving the level of education and (or) qualification shall be arranged:

- 1) in respect of federal educational establishments and educational establishments of higher and postgraduate professional education - by authorized federal executive bodies;
- 2) in respect of other educational establishments - by executive bodies of the subjects of the Russian Federation.

Chapter III. Administration of the Education System

Article 28. The Competence of the Russian Federation in the Educational Sphere

The Russian Federation, through its Federal bodies of the State power and education administration bodies shall be responsible in the educational sphere for:

- 1) the formulation and implementation of the Federal policy in the educational sphere;
- 2) legal regulation of relations in the educational sphere within the limits of the Federal competence;
 - 2.1) ensuring of the state guarantees of the rights of citizens in the field of education;
- 3) the drafting and implementation of federal purposive and international programmes in the area of education;
- 4) the creation and direction of the Federal State bodies of education administration thereto of departmental organs of education administration, and appointment of administrative heads of these bodies;

5) coordination of appointments of heads of educational establishments of the Federal jurisdiction, unless otherwise is provided by the law and the Sample Regulations on the educational establishments of corresponding types and kinds;

6) establishment of the procedure for the creation, reorganization and liquidation of federal state educational establishments;

7) compiling the lists of professions and occupations for which vocational instruction and vocational training are provided;

8) the establishment, re-organisation and liquidation of federal educational establishments;

9) *Abolished from January 1, 2005.*

10) the drafting and approval of Sample Regulations on educational establishments;

11) laying down the procedure for licensing, certification and the State accreditation of educational establishments;

11.1) establishment of the forms of, and Procedure for, carrying out the State (final) attestation of trainees, including the uniform state examination, of the procedure for checking examination papers and of the system of results' assessment, as well as of the procedure for filing and consideration of appeals;

11.2) arrangement of the uniform state examination in the territory of the Russian Federation, including the development of control assessment materials for holding the uniform state examination and provision thereof to the state examination commissions in constituent entities of the Russian Federation, organisation and conduct of centralized testing of examination papers of participants of the uniform state examination, forming and keeping of federal databases concerning participants of the uniform state examination and the results of the uniform state examination;

11.3) establishment of the procedure for enrollment to the state and municipal educational establishments, in particular of the procedure for holding additional entrance examinations when entering the state and municipal educational establishments of secondary professional education and the state municipal educational establishments of higher professional education;

11.4) establishment of a list of competitions of schoolchildren and of a procedure for conducting them;

12) laying down the certification procedures for the teaching and administrative staff of the State and municipal education establishments and education administration organs;

13) establishment of labour norms and standard rates of labour remuneration in federal governmental educational establishments;

14) establishment of the Federal components of the State educational standards and equivalence of education documents in the territory of the Russian Federation, and recognition of foreign education documents in the territory of the Russian Federation;

~~15)~~ *Abolished from January 1, 2005;*

16) establishment:

of federal normative standards of financing the education of pupils and inmates of federal governmental educational establishments;

of the general principles of financing educational services;

of the educational qualification for pedagogical workers;

of the rates of wages and salaries for employees of federal governmental educational establishments of appropriate professional qualification groups;

of social support to different categories of pupils, inmates and pedagogical workers of federal governmental educational establishments, as well as of the types and norms of material maintenance of the said pupils, inmates and pedagogical workers in compliance with the laws of the Russian Federation;

of the procedure for granting to citizens, and for their paying off, the state educational credit;

of the federal requirements in respect of educational establishments, as regards construction norms and rules, sanitary code, health protection of pupils and inmates, protection of the population and territories from emergency situations of natural and man-caused nature, the minimum rate of equipment provision for training and the equipment for classrooms;

of the procedure for developing and using distance learning technologies;

17) financing federal governmental educational establishments and educational services;

18) annual endorsement, on the basis of expert examination, of federal lists of the text-books recommended (cleared) for use in educational process in educational institutions implementing general education curricula and having state accreditation;

19) provision of information and research in methods to the educational system, the drafting of basic education plans and model courses and teaching subjects within its competence, teaching materials and textbook editions. Creation of a unified educational information system for the Russian Federation;

20) organization of the Federal system for the training and retraining of teaching staff and workers of the State education administration organs;

21) supervision and control over the observance of the legislation of the Russian Federation in the area of education and education quality (as regards the federal components of the state educational standards), taking measures aimed at elimination of breaches of the legislation of the Russian

Federation in the area of education, including by way of sending orders to educational establishments and to bodies engaged in education management to be followed without fail;

22) establishment and the awarding of the State decorations and honorary titles to education workers;

23) publication of regulatory documents within its competence;

24) licensing, certification and accreditation of federal educational establishments, as well as of higher educational establishments, in respect of all curricula implemented by them.

Article 29. Competence of the Subjects of the Russian Federation in the Sphere of Education

The subjects of the Russian Federation have the following competence in the sphere of education:

1) the formulation and implementation of an educational policy that does not run counter to the policy of the Russian Federation in the sphere of education;

2) the legislation of the subjects of the Russian Federation in the sphere of education;

3) the formulation of the procedure for setting up, reorganising, liquidating and financing educational establishments of a subject of the Russian Federation in compliance with this Federal Law;

4) *Abolished from January 1, 2005;*

5) the drafting and implementation at the republican and regional levels of programmes to develop education, including international participation with due regard to special national, regional social and economic, environmental, cultural, demographic and other characteristics;

5.1) *Abolished from January 1, 2005;*

6) establishment and supervision of the State bodies of education administration, appointment of heads of these bodies (in coordination with the Federal bodies of education administration);

6.1) providing the state guarantees of the rights of citizens to the obtainment of generally accessible and gratuitous pre-school, primary general, basic general, secondary (complete) general education, as well as of additional education at general educational establishments by way of assigning subventions to the local budgets in an amount necessary for the realisation of the basic general education programmes, as regards the financing of remuneration of labour of the personnel of general educational establishments, the expenses on the acquisition of teaching aids, technical facilities of training and disposables and on the household needs (except for the outlays on the maintenance of buildings and public utilities covered at the expense of local budgets) in compliance with the normative standards established by the laws of a subject of the Russian Federation;

6.2.) arranging the provision of generally accessible, basic general, secondary (complete) general education on the basis of principal general education curricula at special (correctional) educational establishments for pupils and inmates with deviations in their development, at educational establishments for children who are orphans and for children without parental care, at special open-type and closed-type educational establishments, at health-improvement sanatorium type educational establishments for children in need of long treatment, at educational establishments for children in

need of psychological-and-pedagogic and medical-and-social support (except for the education obtained at the federal educational establishments whose list is endorsed by the Government of the Russian Federation), in compliance with the normative standards established by the laws of a subject of the Russian Federation);

6.3) arranging the provision of additional vocational training at educational establishments of the subjects of the Russian Federation, as well as of additional training to children at establishments of regional importance;

7) the establishment, re-organisation and liquidation of educational establishments of the subjects of the Russian Federation (except for the foundation of higher education establishments), as well as licensing, certification and accreditation by the State of educational establishments (except for the educational establishments whose licensing, certification and accreditation by the State is referred to the scope of authority of the Russian Federation);

8) the formulation of regional and national-regional components of the State educational standards;

8.1) ensuring and conducting the State (final) attestation of trainees who have assimilated educational programmes of basic general and secondary (complete) general education, in particular in the form of the uniform state examination, including check-up of examination papers of participants of the uniform state examination in the established procedure, forming and keeping of databases of constituent entities of the Russian Federation in respect of participants of the uniform state examination and in respect of the results of the uniform state examination;

9) the drafting of budgets of the subjects of the Russian Federation in the part of education expenditures;

~~10)~~ *Abolished from January 1, 2005;*

11) the establishment of normative standards for financing education of a subject of the Russian Federation;

~~12)~~ *Abolished from January 1, 2005;*

13) the establishment for educational institutions within the scope of jurisdiction of a subject of the Russian Federation of additional standards besides the Federal requirements to educational establishments regarding building standards and regulations, sanitary standards, protection of health of students and pupils, requisite equipment for the teaching process and the classrooms;

~~14)~~ *Abolished from January 1, 2005;*

15) provision of information within its competence to educational establishments, organization of the publication of teaching materials, the drafting of basic education plans and model courses and of teaching subjects;

16) organization of training, retraining, and refresher courses for teaching staff;

16.1) attestation of the pedagogic personnel of educational establishments of the subjects of the Russian Federation and of municipal educational establishments and the personnel of the bodies engaged in education management of the subjects of the Russian Federation and of municipal formations;

17) the right of exercising supervision and control in the area of education and maintenance of the state educational standards, regardless of the property forms (except for federal educational establishments and higher education establishments), as well as over the activities of municipal bodies

engaged in education management;

18) publication of regulatory documents within its (their) competence.

Article 30. The Procedure for Delimitation of the Competence of the State Power Bodies and Education Administration Organs

1. As laid down in Articles 28 and 29 of this Law the competence in the sphere of education of the Federal bodies of the State power, the Federal bodies of education administration, and bodies of the State power of the subjects of the Russian Federation shall be exhaustive and may not be amended other than legally.

2. The delimitation of the competence between the Federal lawmaking and executive agencies in the sphere of education shall be defined in accordance with the Constitution of the Russian Federation by law governing the activity of the Government of the Russian Federation.

3. The delimitation of the competence in the sphere of education between the Federal executive bodies shall be defined by the Government of the Russian Federation.

4. The delimitation of the competence in the sphere of education between the bodies of legislative and executive power of the subjects of the Russian Federation, and between their organs shall be governed by the legislation of the subjects of the Russian Federation.

5. The Federal executive power bodies may not be empowered to give their independent consideration to the matters placed by this Law within the competence of the executive bodies of the subjects of the Russian Federation and the local education administration organs, with the exception of cases provided for by the legislation of the Russian Federation, which concern matters of the State security and public safety, protection of health and the sanitary and epidemiological safety of the population, protection of the rights and freedoms of citizens.

6. The federal executive body charged with exercising the functions of control and supervision in the area of education and science shall be entitled within the scope of authority thereof to inspect educational establishments by way of exercising supervisory powers on the territory of the Russian Federation, regardless of their organizational-and-legal forms, types and kinds, bodies engaged in education management and authorized executive bodies of the subjects of the Russian Federation charged with exercising control and supervision in the area of education. A procedure for exercising control and supervision in the area of education shall be established by the Government of the Russian Federation. The federal executive body charged with exercising the functions of control and supervision in the area of education and science shall be entitled to transfer exercise of a part of its powers in the procedure established by the federal laws to authorized executive bodies of the subjects of the Russian Federation engaged in exercising control and supervision in the area of education.

Article 31. The Authority of Local Self-Government Bodies of Municipal Districts and Urban Circuits in the Area of Education

1. The authority of local self-governments bodies of municipal districts and of urban circuits shall extend to the following:

- 1) organising the provision of generally accessible and gratuitous primary general, basic general, secondary (complete) general education in compliance with the main general education programmes, except for the authority related to the financial maintenance of educational procedure referred to the authority of state power bodies of the subjects of the Russian Federation;
- 2) organising the provision of additional education to children and of generally accessible gratuitous pre-school education;
- 3) establishing, re-organising and liquidating municipal educational establishments;
- 4) ensuring the maintenance of buildings and structures of municipal educational establishments and the development of the territories adjacent thereto;
- 5) registration of children subject to mandatory training at the educational establishments implementing the educational programmes of basic general education;
- 6) guardianship and custodianship.

2. In such subjects of the Russian Federation as the cities of federal importance Moscow and Saint-Petersburg the authority of local self-government bodies of intraurban municipal formations in the area of education shall be established by the laws of these subjects of the Russian Federation, that is, the cities of federal importance Moscow and Saint-Petersburg.

3. The local self-government bodies of urban circuits shall be entitled to establish, re-organise and liquidate municipal higher education establishments.

Article 32. The Competence and Responsibility of the Educational Establishment

1. The educational establishment shall act independently in its provision of education, selection and placement of personnel, research, financial, economic and other activity within the limits defined by the legislation of the Russian Federation, the Sample Regulations for the educational establishment of the appropriate type and kind, and the Charter of the educational establishment.

2. The following are within the competence of the educational establishment:

- 1) the provision of supplies and equipment for the teaching process, and fitting in the premises in accordance with the State and local standards and regulations, effected within the limits of its own financial resources;
- 2) the attraction of additional sources of financial and material funds, including the use of a bank credit by the non-governmental educational establishment for the activity stipulated by the charter of the educational establishment;
- 3) the provision of annual income and expenditures report covering the material resources to its founder and the public;
- 4) the selection, employment and placement of the personnel, responsibility for their level of qualification;
- 5) the use and improvement of educational process methodologies and educational technologies, in particular distance educational technologies. The "remote educational technologies" means

educational technologies implemented mainly with the use of information and telecommunication technologies involving an indirect (remote) or partially indirect interaction of the student and the teacher.

The educational inst

forms in which education can be obtained in the manner established by the federal (central) governmental body in charge of education;

6) the drafting and approval the educational institution component of a state general education standard, education curriculum and curricula;

7) the drafting and approval of work schedules for courses and teaching subjects;

8) the drafting and approval with the consent of the local self-governmental organs of the annual course schedules;

9) the defining of the management structure of supervision over the activity of the educational establishment, its staff schedule, allocation of post duties;

10) setting the rates of labour wages of the staff of an educational establishment, including rises in official salaries and additional payments thereto, the procedure for awarding, and amounts of, bonuses thereto;

~~11)~~ *Abolished from January 1, 2005;*

12) drafting and adopting the Charter of an educational establishment by the collective thereof for proposing it for approval;

13) the drafting and adoption of the establishment office rules, and other local acts;

14) independent admittance of students, pupils within the limits of the quota specified in its license, unless otherwise specified by the Sample Regulations for the given type and kind of educational establishment and by this Law;

15) independent carrying out of the teaching process in accordance with the Charter of the educational establishment, its license and the certificate of the State accreditation;

16) the daily monitoring of students' progress and mid-course assessment of the students in the educational establishment in accordance with its Charter and the requirements of this Law;

~~17)~~ *Abolished from January 1, 2005;*

18) the ensuring that maintenance conditions of pupils in boarding type educational establishments shall be not below the established standard;

19) creation of the conditions in the educational establishment required for functioning of subdivisions of public catering enterprises and medical establishments, monitoring of their operation in the interests of protecting and improving health of the students, pupils and the staff of the educational establishment;

20) promotion of the activities of teachers' (pedagogical) organizations and (associations) concerned with teaching methods;

21) coordination within the educational establishment of activities by public (including those with children and youth participation) organizations (associations) that are not prohibited by law;

22) the carrying out of any other activity not prohibited by the legislation of the Russian Federation and provided for by the Charter of the educational establishment;

23) selection of text-books from approved federal lists of the text-books recommended (cleared) for use in educational process.

3. The educational establishment is liable in manner laid down by the legislation of the Russian Federation for:

- 1) failure to carry out the functions within its assigned competence;
- 2) any omissions in carrying out its educational curriculum in accordance with its curriculum and teaching process schedule; the quality of the education of its course finishers;
- 3) the life and health of the students, pupils and staff of the educational establishment;
- 4) infringements on the rights and freedoms of the students, pupils and staff of the educational establishment;
- 5) any other matter covered by the legislation of the Russian Federation.

Article 33. Procedure for the Creation of an Educational Establishment and Regulation of Its Activity

1. An educational institution shall be established and registered in compliance with the laws of the Russian Federation.

The procedure f

determined by the Government of the Russian Federation, the procedure for establishing state educational institutions that are within the scope of jurisdiction of a subject of the Russian Federation shall be determined by the executive body of the subject of the Russian Federation and that for municipal educational institutions shall be determined by the local self-government bodies.

~~2. Abolished from January 1, 2005.~~

3. To register an educational establishment the founder submits the documents in compliance with the Federal Law on State Registration of Juridical Persons.

4. The authorized body shall register the educational establishment within the terms established by the Federal Law on State Registration of Juridical Persons, and give notice of having done so in writing to the applicant, the financial authorities, and the corresponding State bodies of education administration.

5. The educational establishment shall acquire the rights of a legal entity as regards the carrying out of financial and economic activity specified in its Charter and in preparation for provision of education, from the time of its registration.

6. The right to carry out the educational activity and the privileges conferred by the legislation of the Russian Federation shall arise for the educational establishment from the time that it receives its license (permit).

7. The license to carry out educational activity shall be issued by the authorised executive body, based on findings of an commission of experts. A license shall be issued to an educational establishment of religious organizations (associations) to carry out educational activity upon a representation from the leadership of the confession in question.

8. The commission of experts is set up by the authorised executive body on application from the founder and completes its work within one month. The commission of experts is composed on a parity basis of representatives of an body of the State education administration, of a corresponding organ of local self-govermental and (or) of an organ of local education administration, of some functioning

educational establishments, and of the general public.

9. The subject matter and the content of the expert examination shall be to ascertain that the conditions for carrying out of the educational process offered by the educational establishment comply to the State and local requirements as regards building standards and regulations, standards of sanitation and hygiene; protection of health of the students, pupils and staff of the educational establishment, availability of equipment in the class rooms and during the teaching process, the educational qualifications of the teaching staff and the staffing level. The content, organization and methods of the provision of education shall not be the subject matter of the commission of experts. The peculiarities of the subject matter and content of an expert examination performed in respect of educational institutions that use distance educational institutions to implement curricula partially or in full shall be determined by the federal (central) governmental body in charge of education, except as otherwise established by a federal law.

10. The requirements of the expert examination must not exceed the average statistics for the territory in which the educational establishment is registered.

11. The cost of the expert examination shall be borne by the founder of the educational establishment.

12. The license issued to the educational establishment shall lay down control standards, the maximum intake of students and pupils, and the period for which the license remains in force.

13. A negative outcome of the expert examination and the refusal on that basis to grant a license to the educational establishment may be the subject of a legal appeal by the founder.

14. The authorised executive body shall enforce supervise the compliance by the educational establishment irrespective of its organizational and legal form to the requirements laid down in the license. The license shall be withdrawn should the said requirements be violated.

15. The procedure for renewal of the license shall be the same as for its granting.

16. The right of an educational institution to issue a document of a state-approved design for its graduates that certifies a certain level of education and to use a seal bearing an image of the State Coat of Arms of the Russian Federation shall emerge as of the state accreditation of the educational institution confirmed by a certificate of state accreditation.

17. The state accreditation certificate issued to the educational establishment shall confirm its official status, the level of the education curriculum to be taught, the conformity of the content and quality of the education received by course finishers to the requirements of the State educational standards, and its right to provide course finishers with an education document of the State model on the appropriate educational level.

The State accreditation certificate issued to establishments and establishments of children's further education shall confirm the official status of the corresponding educational establishment, the level of educational curriculum taught, the category of the given educational establishment.

18. The State accreditation of educational establishments shall be carried out by the authorised executive body on the basis of an application from an educational establishment and a conclusion reached on its certification.

19. The certification of an educational establishment shall be carried out on its application by the State certification service with the participation of prominent educational establishments, members of the

general public. The certification shall be carried out once every five years, unless otherwise provided by law. The cost of certification shall be borne by the educational establishment.

20. The purpose and the subject matter of certification shall be to confirm that the content, the level and quality of the education received by the course finishers of the educational establishment correspond to the requirements of the State educational standards. The certification of the educational establishment shall be conditional to the fact that no less than half of its course finishers shall achieve positive results in their final assessment over three consecutive years.

of the first certification

newly created educational establishment may be carried out on its application upon graduation of the first intake of students but not earlier than after three years upon receipt of the license and conditional on positive results of final assessment of no less than half of its course finishers.

The first

certification of newly created educational establishment of primary general, basic general and secondary (complete) general education may be carried out in phases for stages of education - primary general, basic general, secondary (complete) general.

21. The decision of the State certification service on certification may be the subject of a legal appeal only as regards the certification procedure. The educational establishment shall have the right to reapply for certification earlier than 12 months after it was denied the State accreditation.

22. The certification of pre-school educational establishments, educational establishments for orphans and children not in the care of their parents (persons acting in loco parentis), special (remedial) educational establishments for children with developmental abnormalities, further education establishments and newly created experimental educational establishments shall be carried out by the appropriate State body of education administration in the manner laid down for these educational establishments by the Sample Regulations.

23. An educational establishment may be deprived of its State accreditation on the basis of the results of the certification.

24. Branches and departments of educational establishments shall be undergo licensing, certification and the State accreditation in the general manner laid down for educational establishments by this Law.

The branches

means of distance educational technologies (except for some classes) in these branches shall be entitled to undergo attestation and state accreditation as part of the educational institution of which they are structural units.

25. Educational establishments may receive public accreditation in various Russian, foreign and international public educational, scientific and industrial bodies. Such accreditation shall not entail any additional financial undertakings on the part of the State.

Article 34. Reorganization and Liquidation of an Educational Establishment

1. An educational establishment may be reorganised into another educational non-profit institution in compliance with the laws of the Russian Federation. The procedure for reorganising federal state educational institutions shall be established by the Government of the Russian Federation, the procedure for reorganising state educational institutions that are within the scope of jurisdiction of a subject of the Russian Federation shall be established by the executive body of the subject of the

Russian Federation and that for reorganising municipal educational institutions shall be established by the local self government body.

2. In the reorganization of an educational establishment in the form of transformation, branching off of an affiliate into an independent legal entity, affiliation with an educational establishment of a legal entity which is not an educational establishment, and in the creation of an autonomous educational institution by changing the type of the existing government or municipal educational establishment, an educational establishment has the right to perform the kinds of activity, defined in its Rules, on the ground of a licence and of a certificate on the state accreditation, issued to such educational establishment before the end of validity of these licences and certificate. If the status of an
educational establishment is changed and if it is reorganized in a form, not pointed out in the first paragraph of the present Item, the licence and the certificate on the state accreditation lose their force, if not otherwise provided for by federal laws.

~~3. Abolished from January 1, 2005.~~

4. An educational establishment may be liquidated:

- in compliance with the laws of the Russian Federation in the procedure established by the Government of the Russian Federation for federal state educational establishments, by the executive body of a subject of the Russian Federation in the procedure established for state educational establishments that are within the scope of jurisdiction of the subject of the Russian Federation and the by local self-government bodies in the procedure established for municipal educational establishments;
- by court ruling should it operate without an appropriate license, or engage in an activity prohibited by law, or carry out an activity not in line with aims of its Charter.

5. A rural pre-school or general educational establishment may be liquidated only with the consent of the inhabitants of settlements catered by the establishment.

Article 35. Management of the State and Municipal Educational Establishments

1. The management of the State and municipal educational establishments shall be carried out in accordance with the legislation of the Russian Federation and the Charter of the educational establishment.

2. The management of the State and municipal educational establishments shall be based on principles of unity of leadership and self-management. Forms of self-management in an educational establishment shall be as follows: the board of the educational establishment, the council of trustees, the general meeting , the pedagogical council and others. The Charter of the educational establishment shall lay down the educational establishment and their competence.

2.1. In the part, not regulated in the legislation of the Russian Federation, the procedure for the

formation of the management bodies of an educational establishment and their competence shall be defined in the Rules of the educational establishment.

3. The daily management of the state or municipal educational establishment shall be carried out by a properly certified head, director, rector or other manager (administrator) of the educational establishment in question.

The status of the head

Federal jurisdiction shall be laid down by the Government of the Russian Federation.

4. The head of the state or municipal educational establishment may, in accordance with the Charter of the educational establishment, be:

1) elected by the staff

elected by the staff of the educational establishment upon prior agreement of the founder on the candidate (candidates);

3) elected by the staff

approved by the founder;

4) appointed by the founder with the

the educational establishment;

5) appointed by the founder

founder. Appointment of rectors shall not be permitted in civil higher vocational training establishments.

5. The delimitation of powers between the board of an educational establishment and its head shall be laid down by the Charter of the educational establishment.

6. Heads of the state and municipal educational establishments shall not be permitted to combine their posts with other managerial positions (apart from leadership in matters of research, and research and methods) within or outside the educational establishment.

7. The post duties of heads of the state and municipal educational establishments, their branches (subdivisions) shall not be carried out concurrently by holders of other posts.

Article 36. Management of Non-government Educational Establishments

1. The management of a non-government educational establishment shall be carried out directly by its founder or on his instruction by a board of trustees appointed by the founder.

2. The competence of the board of trustees and the structure of internal management of the non-government educational establishment, and the procedure for the appointment or election of the head of the educational establishment and his (her) powers shall be determined by the founder (the board of trustees) with the consent of the teaching staff and shall be laid down in the Charter of the non-government educational establishment.

Article 37. Education Administration Bodies in the Russian Federation

1. State and municipal education administration bodies may be established and function in the Russian Federation:

- the Federal (central) State education administration bodies;

- the Federal departmental education administration bodies;
 - the State education administration bodies for the subjects of the Russian Federation;
 - municipal education administration bodies.
 -
2. The State education administration bodies shall be created by decision of the corresponding organ of executive power by agreement with the corresponding legislative (representative) body of the State authority.
3. Municipal education administration bodies may be established and function by decision of the appropriate local self-government bodies.
4. The activity of the education administration bodies shall be directed toward implementation of the State educational standards and ensuring performance of the system of education at the level of the State specifications.
5. *Abolished from January 1, 2005.*

6. The educational establishments subordinated to the education administration bodies shall be subject to their control. Should any educational establishment violate the legislation of the Russian Federation in the sphere of education and (or) its Charter, the State education administration bodies shall have the right to introduce a direction about an elimination of the given violation.

Article 38. The State Control over the Quality of Education in the Accredited Educational Establishments

1. The State certification service may send a State-accredited educational establishment a complaint concerning the quality of the education and (or) discrepancy between the education and the requirements of the corresponding State educational standard.

2. The grounds upon which a higher authority of the State certification service may consider sending a complaint are:

- 1) as regards educational curriculum: a decision of a general meeting of parents (persons acting in loco parentis) of children attending the given education establishment; an official representation
- 2) as regards educational curriculum: service for the area in which the educational establishment is located; 2) as regards educational curriculum: a decision of a general meeting of parents (persons acting in loco parentis) of children attending the given education establishment;
- 3) as regards the quality of education: establishments teaching vocational training curriculum: an official representation
- 4) as regards the quality of education: students of the given educational establishment; an official representation from the State employment service.

3. The decision to send a complaint or to decline the request of the petitioners that a complaint be sent shall be taken by the higher authority of the State certification service and is communicated to the petitioners within a month. The petitioners may lodge a legal appeal against the refusal of the State certification service to send a complaint.

4. A further complaint within two years automatically entails the withdrawal of State accreditation from the educational establishment. The procedure for the renewal of accreditation is the same as for its granting.

Chapter IV. The Economics of the Education System

Article 39. Property Relations in the Education System 1. The founder shall assign items of property (land, buildings, facilities, movable property, equipment, as well as other essential property of a consumer, social, cultural and other nature), to the educational establishment to enable it to carry out its educational activity in accordance with its Charter; the founder either has the legal title to the

property concerned or he leases it from a third party (owner).
state and municipal educational establishments for free use of unlimited duration.

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2. The items of property assigned by the founder to the educational establishment shall be under effective management of this establishment.

3. The educational establishment shall be responsible to the owner for the safeguarding and effective use of the property assigned to it. The founder or other legal entity authorized by the owner shall exercise control over the activity of the educational establishment in this respect.

4. The state and (or) municipal property assigned to the educational establishment, may be alienated by the owner in a manner and under conditions laid down in the legislation of the Russian Federation, the legislation of the subjects of the Russian Federation and enactments of local self-government authorities adopted within the limits of their powers.

5. A non-governmental education establishment (organisation) may be the owner of property in compliance with the laws of the Russian Federation.

6. The confiscation and (or) alienation of property allocated to an educational establishment shall be permitted only on expiry of the term of an agreement between the owner (a legal entity authorized by him) and the educational establishment or between the owner and the founder (a legal entity authorized by him), unless there is a provision to the contrary in the agreement.

7. The Item is abolished upon the expiry of sixty days after the official publication of Federal Law No. 175-FZ of November 3, 2006.

8. The Item is abolished upon the expiry of sixty days after the official publication of Federal Law No. 175-FZ of November 3, 2006.

9. The Item is abolished upon the expiry of sixty days after the official publication of Federal Law No. 175-FZ of November 3, 2006.

10. On the liquidation of an educational establishment its monetary resources and the other items of property to which it has the right of ownership, over and above payments to cover its obligations, shall be applied to the development of education in accordance with the Charter of the educational establishment.

11. An educational establishment shall be entitled to act as the lessee and lessor of property.

~~12. Abolished from January 1, 2005.~~

13. The State and municipal educational establishments, allocated to them with the right of effective management or placed at their full disposal production and social infrastructure facilities, including living premises found in the buildings of educational, production, social and cultural purpose and dormitories (for rural areas), thereto clinical bases for medical education establishments, that are in the effective management of educational establishments or in under any other authority, shall not be subject to privatization.

The prov ision

establishments of extended professional education (for raising of qualifications) pertaining to organizations of the atomic energy industrial complex of the Russian Federation to be transferred to the public joint-stock company of the atomic energy industrial complex of the Russian Federation in compliance with the Federal Law on the Specifics of Management and Disposal of Property and Stocks of the Organisations Engaged in the Activity of Atomic Energy Use and on Amending Some Legislative Acts of the Russian Federation.

Article 40. *Abolished from January 1, 2005.*

Article 41. The Financing of Educational Establishments

1. The activities of an educational establishment shall be financed in compliance with the laws.
2. Federal state educational establishments shall be financed on the basis of the federal normative standards of financing state educational establishments that are within the scope of jurisdiction of the subjects of the Russian Federation and municipal educational establishments shall be financed on the basis of the federal normative standards and normative standards of a subject of the Russian Federation. These normative standards shall be determined for each type, kind and category of an educational establishment counting upon one pupil, inmate, as well as on other basis.

As regards

low-intake rural educational establishments and those regarded as such by state power bodies and education administration bodies, the normative standard of financing must account for the expenses that are not dependent on the number of pupils.

At least one h

ten thousand people residing in the Russian Federation shall be trained in federal governmental educational establishments of higher professional education at the expense of the federal budget funds.

3. Normative standards of financing federal state educational establishments shall be established by the Government of the Russian Federation.

4. The normative standards of financing educational establishments of a subject of the Russian Federation and municipal educational establishments in the part thereof provided for by Item 6.1 of Article 29 of this Law shall be established by state power bodies of the subjects of the Russian Federation.

~~5. Local government bodies may establish normative standards of financing municipal educational establishments at the expense of local budgets (except for the subventions granted from the budgets of the subjects of the Russian Federation in compliance with Item 6.1 of Article 29 of this Law).~~

~~5. Abolished from January 1, 2005.~~

~~6. Abolished from January 1, 2005.~~

~~7. Abolished from January 1, 2005.~~

8. An educational establishment shall have the right to raise additional financial resources, in the manner laid down by the legislation of the Russian Federation, through provision of additional educational and other services for a fee as stipulated in the Charter of the educational establishment, and also through voluntary donations and target contributions from natural and legal entities, including foreign citizens and (or) foreign legal entities

9. The attracting of additional resources listed in paragraph 8 of this Article shall not entail any reduction in the standard rates and (or) real amounts of its financing from the resources of the founder.

10. The State educational establishments of secondary vocational education and state and municipal educational establishments of higher vocational training shall have the right to carry out training and retraining of skilled workers (workers and office staff) and of specialists of appropriate level of education on contractual basis with natural and legal entities for a reimbursement of the cost of the training above and over the mandatory intake figures financed from the resources of the founder.

11. The state educational institutions of the secondary professional education and state and municipal educational institutions of higher professional education shall be entitled to admit trainees on target basis under contracts with governmental bodies, local government bodies for the purposes of assisting them in training specialists of a specific level of education, within the limits of founder-financed state trainee-admittance assignments (check-up figures).

Article 42. Characteristics of the Economics of Secondary Vocational and Higher Vocational Training

1. Provision on the competitive basis of free secondary vocational and higher vocational training in the State educational establishments of secondary vocational and higher vocational training within the limits of the Federal component of the State educational standard shall be effected at federal state educational establishments and at educational establishments of the subjects of the Russian Federation in compliance with the assignment (mandatory figures) for intake of students for free training.

2. The amount and allocation of students intake to be trained at the expense of the resources of the Federal budget shall be established in the manner laid down by the Government of the Russian Federation

to be trained at the expense of the resources of the Federal budget shall be established in the manner laid down by the Government of the Russian Federation

the subjects of the Russian Federation shall be established in the procedure established by executive bodies of the subjects of the Russian Federation.

3. Should the subjects of the Russian Federation introduce a regional component of the State educational standard the financing of the expenses incurred thereby for free education of students shall be financed from the resources of the budgets of the corresponding subjects of the Russian Federation.

4. Within the available extra-budgetary resources the educational establishments may independently render social support to students who are in need of it.

5. The State educational establishments shall independently establish priorities and manner of allocation of their budgetary and extra-budgetary resources, including the share earmarked for labour remuneration and material incentive fund of the educational establishments staff.

~~6. Abolished from January 1, 2005.~~

Article 43. The Right of Educational Establishment to Use Financial and Material Resources

1. An educational establishment shall independently exercise financial and economic activities and may have an independent balance sheet and personal account.

2. The financial and material resources of the educational establishment, assigned to it by the founder shall be utilized by it in accordance with the Charter of the educational establishment and may not be withdrawn, unless otherwise provided by the legislation of the Russian Federation.

~~3. Abolished from January 1, 2005.~~

~~4. Abolished from January 1, 2005.~~

~~5. Abolished from January 1, 2005.~~

~~Article 44. Abolished from January 1, 2005.~~

Article 45. Further Education Services Provided Against Payment by the State and Municipal Educational Establishment

1. The State and municipal educational establishments shall have the right to provide further education services against payment to the population, enterprises, institutions and organizations (instruction in further education curriculum, and the teaching of special courses and sets of subjects, the provision of coaching, in-depth studies of topics with students and other services) outside the framework of the corresponding education curriculum and the State educational standards. *See the Rules for Rendering Paid Educational Services in the Sphere of Pre-School and of General Education were approved Decision of the Government of the Russian Federation No. 505 of July 5, 2001*

2. The income of the State or municipal educational establishment derived from this activity shall be used by this educational establishment in compliance with the purposes provided for by the Charter thereof.

3. Education services provided against payment may not be rendered in place of educational activity financed from the budgetary resources. Should this take place, the proceeds acquired through such activity shall be withdrawn by the founder to his budget. The educational establishment shall have the right to appeal against such action of the founder to court. *Order of the Ministry of Education of the Russian Federation No. 3177 of July 28, 2003 endorsed the Model Form of a Contract for Provision of Educational Services for a Charge in the Area of Vocational Education*

Article 46. Educational Activity Carried out Against Payment by a Non-government Educational Establishment

1. A non-government educational establishment shall have the right to charge students, pupils a fee for educational services, including for education within the framework of the State educational standards.
2. The educational activity of such educational establishment carried out against payment shall not be regarded as entrepreneurial activity if the income derived from it is expended in its entirety on covering the cost of the provision of education (including expenditure on salaries), and on its development and improvement within the given educational establishment.
3. The inter-relationships of a non-government educational establishment and students, pupils, their parents (persons acting in loco parentis) are regulated by contract determining the level of education, the course duration, the amount of payment and other conditions.

Article 47. Entrepreneurial and Other Profit-Making Activity Activity of an Educational Establishment

1. An educational establishment shall have the right to carry out entrepreneurial and other profit-making activities activity provided for by its Charter.

2. The following shall be regarded as entrepreneurial activity of an educational establishment:
in purchased goods and equipment;
activity of other establishments, (including educational establishments) and organizations;

trade
provision of inter

deriving income (dividends, interest) from them;

acquisition of shares,

an income that are not directly connected with the establishment's own production, operations and services and their sale that are stipulated in the Charter of the establishment.

-carrying out of holding

~~3. Abolished from January 1, 2005.~~

~~4. Abolished from January 1, 2005.~~

5. The founder or the local self-government authority shall have the right to suspend the entrepreneurial activity of an educational establishment should it be to the detriment to the educational activity stipulated in its Charter, pending a court ruling on the matter.

Article 48. Individual Teaching Activity

1. Individual teaching activity accompanied by the receipt of income shall be regarded as entrepreneurial activity and shall be registered in accordance with the legislation of the Russian Federation.
2. Individual teaching activity shall not licensed.
3. Unregistered individual teaching activity is not permitted. Physical entities that engage in such activity with the breach of the legislation of the Russian Federation shall be liable in accordance with the legislation of the Russian Federation. All income received from such activity must be recovered into the revenue of the corresponding local budget in accordance with the established procedure.

Article 49. Compensation for Damage Arising from Substandard Education

1. The State, through the authorized State education administration bodies, shall have the right in case of substandard education of course finishers of an accredited educational establishment to lodge claim against that educational establishment for compensation of additional expenditures of the retraining of those course finishers in other educational establishments.
2. A complaint from the State certification service concerning the quality of the teaching provided shall be the ground for the lodging of such claim.

Chapter V. Social Guaranteed of the Realization of the Rights of Citizens to Education

Article 50. The Rights and Social Support of Students, Pupils

1. The rights and responsibilities of students, pupils in an educational establishment shall be laid down in the Charter of this educational establishment and in other local acts referred therein.

2. Adult citizens of the Russian Federation shall have the right to choose the educational establishment and the form in which the education is provided.

3. Citizens who received education in unaccredited educational establishments and through education in the family and selfeducation shall have the right to certification through external studies in accredited educational establishments of a corresponding type.

4. Students in all educational establishments shall have the right to receive education in accordance with the State educational standards, to instruction within these standards in accordance to individual teaching schemes, to intensive course education, to free access to the library and information resources of libraries, to further education services (including those provided for a fee), to participate in the management of the educational establishment, to respect for human dignity, to freedom of conscience and information, to free expression of personal views and convictions.
accordance with individual teaching schemes within the limits of the State educational standard and the forms of participation of students in the management of the educational establishment shall be regulated by the Charter of this educational establishment.

The instruct

5. Course finishers of educational establishments with State accreditation irrespective of their organizational and legal forms shall have equal rights of entry to an educational establishment of the next level.

6. The founder within the scope of his authority shall provide pupils and inmates of state or municipal educational establishments with scholarships and accommodation at hostels and boarding houses, as well as shall take other measures of social support.

7. Citizens of the Russian Federation shall have the right to receive for the first time free primary general, basic general, secondary (complete) general, primary vocational, and on competitive basis secondary vocational, higher vocational and post-graduate vocational training (education) in the State or municipal educational establishments within the limits of the State educational standards.

an Citizens of the Russian Federation shall have repeatedly receive free vocational training on the directions of the State employment service should they cease to be able to work in their trade, profession, on account of industrial illness and (or) disability and in other cases provided for in the legislation of the Russian Federation.

8. Part-time students and correspondence students in educational establishments who master their curriculum shall be entitled to an additional paid leave from their place of work, a reduced working week and other benefits that are provided in the manner established by the legislation of the Russian Federation.

9. In the educational establishments the maintenance and education of orphans and children not in the care of their parents (persons acting in loco parentis) shall be effected on the basis of complete State support.

10. Organs of education administration shall create special (remedial) educational establishments (classes, groups), for children and adolescents with developmental abnormalities to cater for treatment, upbringing, and education, social adaptation and integration into society.

The categories of

students, pupils to be sent to the said educational establishments, and to be provided with complete State care shall be determined by the Government of the Russian Federation.

Children and

adolescents with developmental abnormalities shall be sent to the said educational establishments by organs of education administration only by agreement of their parents (persons acting as loco parentis) upon the findings of psychological and pedagogical, and medical and pedagogical commissions.

11. Special teaching and training establishments shall be created for adolescents with deviant (socially dangerous) behaviour, who have reached the age of eleven years and require special conditions for their upbringing and training and a special teaching approach, that ensure their medical and social rehabilitation, education and vocational training.

The said adolescents

educational establishments only by a court judgement.

12. For citizens kept in educational labour and correctional labour institutions special conditions for the provision of basic general education and primary vocational training, job training and self-education shall be created by the administration of such institutions and state power bodies of the subjects of the Russian Federation.

13. The State authorities and education administration bodies may create unique educational establishments of the highest category for children, adolescents and young people who have demonstrated outstanding capabilities.

The criteria for

young people for the said educational establishments shall be laid down by the founder and shall be made known to the public.

14. Enlistment of students, pupils of civilian educational establishments without agreement of their parents (persons acting in loco parentis) to works not envisaged by the education syllabus is prohibited.

15. Coercion of students, pupils into joining any social, socio-political organizations (associations), movements and parties, and compelling them to take part in the activities of such organizations and participation in agitation campaigns and political actions may not be permitted.

16. Students, pupils of civilian educational establishments shall have the right to attend activities not covered by curriculum.

17. Should a general educational establishment or primary vocational training educational establishment cease to operate an education administration organ that administers the said educational establishment shall provide for the transfer of the students, pupils by the consent of their parents (persons acting in loco parentis) to other educational establishments of the corresponding type.

18. In the event of termination of the activity of a state civil educational establishment of secondary professional education, of a state or municipal civil educational establishment of higher professional education, the students shall be transferred to other educational establishments.

19. Students, pupils shall have the right to transfer to another educational establishment teaching an educational syllabus of the corresponding level by the agreement of that educational establishment and having successfully passed an assessment.

~~20. Abolished from January 1, 2005.~~

~~21. The Item is abolished from July 1, 2006 in accordance with Federal Law No. 104-FZ of July 6, 2006.~~

~~22. Abolished from January 1, 2005.~~

Article 51. Protection of Health of Students, Pupils

1. The educational establishment shall create conditions that guarantee protection and improvement of health of students, pupils. The educational work load, study schedule of students, pupils shall be laid down by the Charter of the educational establishment on the basis of recommendations approved by public health authorities.

2. Sanitary educational establishments, including sanatorium-type establishments shall be created for children who are in need of longterm treatment. Classes for such children may be provided by

educational establishments at home or in medical establishments. The ensuring of the said measures shall be an expense commitment of a subject of the Russian Federation.

3. The teaching staff of educational establishments must undergo periodical medical examinations at no cost, that shall be borne by the founder.

4. The public health authorities shall provide the medical service for the students, pupils of the educational establishment. The educational establishment must provide the medical staff with adequate premises and working conditions.

5. The classes timetable of the educational establishment must provide for a meal break of sufficient duration for the students, pupils.

by educational establishments. Educational establishment must have premises for the catering of students, pupils.

The catering in the educational establishments

~~6. Abolished from January 1, 2005.~~

7. Officials of educational establishments shall be responsible for ensuring the required conditions for studies, work and leisure of students, pupils of the educational establishment in accordance with the legislation of the Russian Federation and the Charter of the said educational establishment.

Article 52. The Rights and Responsibilities of Parents (Persons Acting in Loco Parentis)

1. The parents (persons acting in loco parentis) of minors shall have the right until the latter have received basic general education to select the forms of education, educational establishments, to protect the legal rights and interests of their child, and to participate in the management of the educational establishment.

2. The parents (legal representatives) of students, pupils shall make sure the children receive a basic general education.

3. The parents (persons acting in loco parentis) of students, pupils are obliged to observe the Charter of the educational establishment.

4. The parents (persons acting in loco parentis) shall have the right to provide their child with primary general, basic general, secondary (complete) general education within the family. A child receiving education within the family has the right upon permission of his (her) parents (persons acting in loco parentis) and having successfully passed an assessment to continue his (her) education in an educational establishment.

5. The parents (persons acting in loco parentis) of the students, pupils are responsible for their upbringing, provision to them of general education.

6. The parents (legal representatives) of children attending state and municipal educational institutions realising the basic general-educational programme of preschool education, shall have the right to obtain, in the procedure established by this Law, compensation for part of the fee for the maintenance of their children at the said institutions.

Article 52.1. Parents' Fee for the Maintenance of a Child at Educational Institutions Realising the Basic General-Educational Programme of Preschool Education

1. The founders of educational institutions realising the basic general-educational programme of preschool education shall have the right to establish a fee to be collected from the parents or legal representatives (hereinafter, a parents' fee) for the maintenance of a child at such institutions, unless otherwise established by this Law and by other federal laws.

2. The rate of a parents' fee for the maintenance of a child at state and municipal educational institutions realising the basic general-educational programme of preschool education cannot exceed

20 per cent of the outlays on the maintenance of a child at the relevant educational institution, and from parents (legal representatives) having three or more minor children, 10 per cent of such outlays. For the maintenance of children with deviations in development attending state and municipal educational institutions realising the basic general-educational programme of preschool education and also children with tubercular intoxication who are at such educational institutions, no parents' fee shall be collected.

3. The list of outlays to be taken into account in the establishment of a parents' fee for the maintenance of a child at state and municipal educational institutions realising the basic general-educational programme of preschool education shall be established by the Government of the Russian Federation.

Article 52.2. Compensation for Part of a Parents' Fee for the Maintenance of a Child at Educational Institutions Realising the Basic General-Educational Programme of Preschool Education

1. For the purpose of material support of the upbringing of children attending state and municipal educational institutions realising the basic general-educational programme of preschool education, parents (legal representatives) shall be paid a compensation for part of the parents' fee (hereinafter, a compensation) for the first child at the rate of 20 per cent of the amount of the parents' fee paid by them and actually charged for the maintenance of a child at the relevant educational institution, for the second child - at the rate of 50 per cent and for the third child and the subsequent children - at the rate of 70 per cent of the amount of the said parents' fee.

exercised by one of the parents (legal representatives) that have paid the parents' fee for the maintenance of a child at the relevant educational institution.

The right to rec

2. The procedure for applying for a compensation and also the procedure for its payment shall be established by the bodies of state power of the entities of the Russian Federation.

3. The financing of the expenses connected with the granting of the compensation shall be an expenses liability of the entities of the Russian Federation.

The Russian Federation

confinancing of such expenses by way of granting to the budgets of the entities of the Russian Federation of subsidies calculated in accordance with this Item on the basis of the average amount of the parents' fee existing at an entity of the Russian Federation and actually charged for the maintenance of a child at state and municipal educational institutions realising the basic general-educational programme of preschool education. The granting of subsidies shall be carried out in the procedure and on conditions determined by the Government of the Russian Federation within the limits of the volumes of the means assigned for such purposes in the federal budget for the regular financial year.

Article 53. The Teaching Profession

1. The staffing procedure of educational establishments shall be governed by their Charters. Individuals possessing educational qualifications laid down in the Sample Regulations for the appropriate types and kinds of educational establishments are permitted to teach in the educational establishments.

2. No clearance shall be granted for pursuing a pedagogical activity in an educational institution to the persons who have been prohibited to pursue it by a court decision or on medical grounds and also the persons whose previous conviction for deliberate grave and especially grave crimes under the Criminal Code of the Russian Federation and the Criminal Code of the RSFSR has not been expunged or redeemed. A list of the said injunction medical grounds shall be established by the Government of the Russian Federation.

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Chapter 52 of the Labour Code of the Russian Federation

Article 54. Labour Remuneration of Workers (Staff) of Educational Establishments

1. Wages and post salaries shall be paid to the staff of an educational establishment for the execution of their functional duties and works stipulated in their employment contract. The carrying out of other tasks and duties by a staff of the educational establishment shall be paid in accordance with a supplementary contract, with the exception of cases provided for by the legislation of the Russian Federation.

~~2. Abolished from January 1, 2005.~~

~~3. Abolished from January 1, 2005.~~

~~4. Abolished from January 1, 2005.~~

Article 55. Rights and Measures of Social Support of the Staff of Educational Establishment

1. The staff of educational establishments have the right to participate in the management of the educational establishment, and to defend their professional honour and dignity.

2. A disciplinary inquiry into a breach of the standards of professional conduct and (or) of the Charter of the educational establishment by an educational worker may be conducted only on the basis of available written complaint against the worker. A copy of the complaint must be supplied to the said educational worker.

3. The disciplinary inquiry and the conclusions arrived at on the basis its findings may be made public only by the agreement of the educational worker involved, except in cases leading to a prohibition to practice teaching profession, or should there be a need to protect the interests of students and pupils.

4. In carrying out their professional duties educational staff have the right of free choice and use of methods of teaching and instruction, teaching aids and materials, textbooks in compliance with a curriculum approved by the educational institution, and methods of assessing the knowledge of students and pupils.

5. Reduced duration working hours of no more than 36 hours a week are established for educational workers teaching staff of educational establishments.

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Federation and other regulatory enactments of the Russian Federation lay down the duration of working hours and minimum duration of annual paid leave for educational workers of educational establishments, depending on their post and (or) speciality, and with regards to characteristics of their work.

Educational workers, in the manner defined by the legislation of the Russian Federation, exercise the right to pension upon attainment of a pension age, to receive free housing fitted with heating and electricity in rural areas, worker's settlements townships (urban type settlement), priority in provision of housing. The amount, terms of, and procedure for, reimbursing the expenses connected with taking the said measures of social support shall be established by legislative acts of the subjects of the Russian Federation.

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the right at least once in every 10 years of continuous teaching work to a long leave up to one year, the procedure and conditions for which are determined by the founder and (or) the Charter of the educational establishment.

6. Teaching work load of teaching staff of educational establishment as fixed in the contract has an upper limit stipulated by the Sample Regulations on the corresponding types and kinds of educational establishments.

6.1. The employees attracted under a decision of authorized executive power bodies to the conduct of the uniform state examination in their labour time and set free from their principal work for the period of holding the uniform state examination shall preserve the guarantees established by the Labour Legislation and other acts containing the labour law rules. The workers attracted to the conduct of the uniform state examination may be paid compensation for the work involved in preparation and conduct of the uniform state examination. The amount of, and procedure for, payment of the

compensation shall be established by a constituent entity of the Russian Federation within the limits of the budget funds of a constituent entity of the Russian Federation allocated for the conduct of the uniform state examination.

7. A faculty member of a higher vocational training educational establishment who has an academic degree in an appropriate speciality has the right to give a course without remuneration parallel to the existing course. The management of the educational establishment must to create the necessary conditions for this.

8. Pedagogical workers of federal state educational establishments (including the leading employees whose activities are connected with training), for the purpose of assisting their provision with books and periodicals, shall be paid a monthly monetary compensation in the amount of 150 roubles at federal state educational establishments of higher professional education and of the appropriate additional professional education and in the amount of 100 roubles at other federal state educational institutions. To pedagogical workers of the state educational establishments that are within the scope of jurisdiction of the subjects of the Russian Federation the aid monetary compensation shall be paid by decision of the state power body of the subject of the Russian Federation in the amount established by the said bodies and to pedagogical workers of municipal educational establishments it shall be paid by the local self-government body.

9. *Abolished from January 1, 2005.*

10. *Abolished from January 1, 2005.*

11. *Abolished from January 1, 2005.*

12. The staff members of educational establishments and training, and counseling offices that are created at educational establishments executing penalty in the form of imprisonment involved in work with convicts are covered by the procedure and conditions of provision with pensions due to special labour conditions which that are established for the staff working with convicts under imprisonment.

Article 56. Labour Relations in the System of Education in the Education system

1. The employer of the staff of an educational establishment is the establishment itself, unless otherwise is provided by the legislation of the Russian Federation.

2. The person, deprived by the court decision of the right to work at an educational establishment in the course of a definite term, cannot be taken on for work at an educational establishment in the course of this term.

2. The labour relationship between a staff member of an educational establishment and the educational establishment is governed by a labour agreement (contract). The conditions of the labour agreement (contract) may not be at variance with the labour legislation of the Russian Federation.

3. In addition to the provisions of the labour legislation of the Russian Federation on the termination of the labour agreement on the initiative of the management the following are the grounds for the dismissal of an educational worker a member of teaching staff, a teaching staff member of an educational establishment prior to expiry of the labour agreement (contract): 1) repeated gross violations of the Charter of the educational establishment;
educational methods involving physical and (or) mental psychological abuse of the personality of student, pupil; personal violence against
intoxication.
agreement of the trade union.

2) the use, including

3) appearing at

The management

Chapter VI. International Activity in the Education System

Article 57. International Cooperation of the Russian Federation

1. International cooperation of the Russian Federation in the field of education is carried out in accordance with the legislation of the Russian Federation and international agreements of the Russian Federation. Should an international agreement of the Russian Federation lay down rules that differ from those stipulated by the legislation of the Russian Federation, the rules of the international agreement shall be applied.

2. Organs of education administration, educational establishments have the right to establish direct ties contacts with foreign enterprises, establishments and organizations.

3. Education, training of foreign citizens and improvement of qualifications of foreign citizens in the educational establishments of the Russian Federation as well as that of citizens of the Russian Federation in foreign educational establishments are carried out in accordance with direct agreements concluded between the educational establishments, associations, organs of education administration, other legal entities, and physical entities in accordance with the international agreements of the Russian Federation. *On the Cooperation with Foreign Countries in the Field of Education, see Decision of the Government of the Russian Federation No. 668 of November 4, 2003 Refer to the Procedure for Admittance and Education of Foreign Nationals in Higher and Medium Professional Educational Institutions of the Russian Federation at the Account of the Federal Budget Means approved by the Decision of the State Committee on Higher Educational Institutions of the Russian Federation No. 5 of April 10, 1996*

Article 58. External Economic Activity

1. Organs of education administration, educational establishments have the right to independently the right to conduct independent foreign economic activity in the manner laid down by the legislation of the Russian Federation.

~~2.~~ *Abolished from January 1, 2005.*